

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
JAQUAN KEITH,

Plaintiff,

-against-,

THE CITY OF NEW YORK, POLICE OFFICER
ANTONIO DINUZZO, Tax No.959598, POLICE OFFICER
CHRISTOPHER RODRIGUES, Tax No. 957088,
LIEUTENANT JUAN LOPEZ, Tax No. 920518, and
POLICE OFFICERS JOHN DOES #s 1-10CERS JOHN
DOES #s 1-10,Defendants.
----- X**SUMMONS**

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Kings
County as the place of trial.**To the above-named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 27, 2024

Yours, etc.

JACOBS & HAZAN, PLLC.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690TO: THE CITY OF NEW YORK, NYC Office of the Corporation Counsel, 100 Church Street,
New York, New York 10007
POLICE OFFICER ANTONIO DINUZZO, Tax No.959598, 73rd Pct.
POLICE OFFICER CHRISTOPHER RODRIGUES, Tax No. 957088, 73rd Pct.
LIEUTENANT JUAN LOPEZ, Tax No. 920518, 115th Pct. Detective Squad

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
JAQUAN KEITH,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
ANTONIO DINUZZO, Tax No.959598, POLICE
OFFICER CHRISTOPHER RODRIGUES, Tax No.
957088, LIEUTENANT JUAN LOPEZ, Tax No. 920518,
and POLICE OFFICERS JOHN DOES #s 1-10,Defendants..
----- X**INDEX NO.:****VERIFIED COMPLAINT****JURY TRIAL DEMANDED**

Plaintiff JAQUAN KEITH, by his attorneys, Jacobs & Hazan, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on August 27, 2021, at approximately 1:00 am plaintiff was lawfully present in the vicinity of Thomas Boyland and Pitkin Avenue, Brooklyn, NY at which time the defendants unlawfully searched, falsely arrested, maliciously prosecuted, denied plaintiff the right to due process/ a fair trial, and subjected plaintiff to the use of excessive force, without cause or legal justification. Plaintiff was lawfully present in the vicinity of Thomas Boyland and Pitkin Avenue, Brooklyn, NY, questioning the individually named defendant NYPD police officers about why they issued him a traffic ticket earlier that night for driving through a red light when he did not drive through a red light, at which time the defendants became angry with plaintiff for questioning them and defendants subjected plaintiff to the use of excessive force and shot plaintiff with their Taser gun in plaintiff's stomach and chest, without cause or legal justification. handcuffed and falsely arrested plaintiff, without probable cause or legal justification. After plaintiff was already seized and handcuffed by the defendants and was incapable of fleeing from the defendants or striking the defendants, the defendants shot plaintiff with the TASER on plaintiff's back, a second time. Plaintiff was handcuffed the second time the defendants shot plaintiff with the TASER. After plaintiff was immobilized from being shot with the TASER a second time and handcuffed, the defendant officers proceeded to punch plaintiff throughout his body numerous times with closed fists, without cause or any legal justification. defendant officers transported plaintiff to the

73rd precinct, against his will. The barbs from the TASER remained lodged in plaintiff's skin when he was transported to the precinct. Upon arriving at the 73rd Precinct the defendants brought plaintiff to the back of the precinct where the holding cells were located and ordered plaintiff to remove his clothing. Plaintiff complied with the officers' unlawful order for plaintiff to remove his clothing, but as plaintiff was removing his clothes, one of the defendant officers tackled plaintiff to the ground, and began ripping plaintiff's clothes off, without any cause or legal justification to act in that manner. Defendant punched plaintiff in the face with a closed fist 3 times and stepped on plaintiff's body as he was laying on the floor of the cell. The other defendant officers joined in and assaulted and battered plaintiff while he was handcuffed, laying on the floor of the cell. Then a defendant officer helped plaintiff up off the ground but became angry with plaintiff when plaintiff asked for an attorney, and the defendant officer punched plaintiff 6 times in the face and the other defendant officers joined him. Plaintiff was handcuffed during the entire assault, battery, and use of excessive force against him. Plaintiff was transported to Brookdale Hospital via ambulance to receive treatment for the injuries caused by the defendants' use of force against him. TASER barbs were removed from his skin using an anesthetic. Plaintiff was diagnosed with acute head trauma, neck tenderness, and chest tenderness from being subjected to the excessive use of force by the officers described in the preceding paragraphs, including but not limited to being kicked and punched repeatedly in the head. Plaintiff had CT Scans taken of his head and cervical spine at the hospital and he was instructed to return to the hospital for additional testing and treatment when he was released from custody. Plaintiff was transported back to the 73rd precinct after he received medical treatment at the hospital. Defendants unlawfully fingerprinted and photographed plaintiff at the 73rd precinct. Thereafter, plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued until plaintiff was arraigned in Kings County Criminal Court on August 28, 2021 at approximately 10 am and charged with crimes he did not commit and that the officers lacked probable cause to accuse him of committing, including but not limited to Resisting Arrest, Obstructing Governmental Administration, Dazzling Headlights, and Reckless Driving. The defendants provided the Kings County DA's Office with false, misleading, and incomplete evidence regarding their purported basis for arresting plaintiff, charging him with crimes and subjecting him to the use of excessive force. The defendant officers' false, misleading, and incomplete allegations against plaintiff that were communicated to the DA's Office formed the basis for the criminal prosecution initiated against plaintiff, without probable cause. Plaintiff was released from custody on his own recognizance at arraignment. Plaintiff was required to appear in criminal court on two more occasions before all charges were dismissed and sealed in their entirety on December 7, 2021, after the Court granted plaintiff's motion to dismiss the charges. The criminal prosecution terminated in plaintiff's favor. The unlawful stop, question, frisk, search, false arrest and false imprisonment, malicious prosecution, excessive force, and denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma..

PARTIES

2. Plaintiff JAQUAN KEITH is a resident of the state of New York.

3. Defendant POLICE OFFICER ANTONIO DINUZZO, Tax No.959598, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER ANTONIO DINUZZO, Tax No.959598, was at all times relevant herein, assigned to the to the 73rd Precinct and is presently assigned to the Transit Bureau 34.

5. Defendant POLICE OFFICER ANTONIO DINUZZO, Tax No.959598, is being sued in his individual and official capacity.

6. Defendant POLICE OFFICER CHRISTOPHER RODRIGUES, Tax No. 957088, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

Defendant POLICE OFFICER CHRISTOPHER RODRIGUES, Tax No. 957088, was at all times relevant herein, assigned to the 73rd Precinct and is presently assigned to the Chief of Department Investigation Review Section.

7. Defendant POLICE OFFICER CHRISTOPHER RODRIGUES, Tax No. 957088, is being sued in his individual and official capacity.

8. Defendant LIEUTENANT JUAN LOPEZ, Tax No. 920518, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

9. Defendant LIEUTENANT JUAN LOPEZ, Tax No. 920518, is and was at all times relevant herein, assigned to the 70th Precinct and is presently assigned to the 73rd Precinct Detective Squad.

10. Defendant LIEUTENANT JUAN LOPEZ, Tax No. 920518, is being sued in his individual and official capacity.

11. Defendants New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

12. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

13. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

14. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On August 27, 2021, at approximately 1:00 am plaintiff was lawfully present in the vicinity of Thomas Boyland and Pitkin Avenue, Brooklyn, NY at which time the defendants unlawfully searched, falsely arrested, maliciously prosecuted, denied plaintiff the right to due process/ a fair trial, and subjected plaintiff to the use of excessive force, without cause or legal justification.

18. . On August 27, 2021, at approximately 1:00 am plaintiff was lawfully present in the vicinity of Thomas Boyland and Pitkin Avenue, Brooklyn, NY, questioning the individually named defendant NYPD police officers about why they issued him a traffic ticket earlier that night for driving through a red light when he did not drive through a red light, at which time the defendants became angry with plaintiff for questioning them and defendants subjected plaintiff to the use of excessive force and shot plaintiff with their Taser gun in plaintiff's stomach and chest, without cause or legal justification.

19. At no time relevant herein did plaintiff threaten or pose a threat to the defendants' safety, and the defendants did not have any legal basis to subject plaintiff to the use of force and/ or shoot him with a TASER.

20. The defendants tackled plaintiff to the ground by using an unreasonable level of force, and unlawfully handcuffed and falsely arrested plaintiff, without probable cause or legal justification.

21. After plaintiff was already seized and handcuffed by the defendants and was incapable of fleeing from the defendants or striking the defendants, the defendants shot plaintiff with the TASER on plaintiff's back, a second time.

22. Plaintiff was handcuffed the second time the defendants shot plaintiff with the TASER.

23. After plaintiff was immobilized from being shot with the TASER a second time and handcuffed, the defendant officers proceeded to punch plaintiff throughout his body numerous times with closed fists, without cause or any legal justification.

24. At no time relevant herein did the officers have legal justification to shoot plaintiff with a TASER, punch him, or use any force against him whatsoever because the officers did not have any legal basis to touch or seize plaintiff for any period of time at that moment, and even assuming arguendo, that defendants did have a legal basis to touch and/ or arrest plaintiff then the level of force the officers used against plaintiff was unreasonable and excessive.

25. Defendants unlawfully handcuffed and falsely arrested plaintiff, without probable cause or legal justification.

26. At no time relevant herein did plaintiff commit a crime, nor did the defendant officers possess an objective factual basis to establish probable cause to believe he committed a crime or violated the law.

27. The defendant officers transported plaintiff to the 73rd precinct, against his will.

28. The barbs from the TASER remained lodged in plaintiff's skin when he was transported to the precinct.

29. Upon arriving at the 73rd Precinct the defendants brought plaintiff to the back of the precinct where the holding cells were located and ordered plaintiff to remove his clothing.

30. Plaintiff complied with the officers' unlawful order for plaintiff to remove his clothing, but as plaintiff was removing his clothes, one of the defendant officers tackled plaintiff to the ground, and began ripping plaintiff's clothes off, without any cause or legal justification to act in that manner.

31. Defendant punched plaintiff in the face with a closed fist 3 times and stepped on plaintiff's body as he was laying on the floor of the cell.

32. The other defendant officers joined in and assaulted and battered plaintiff while he was handcuffed, laying on the floor of the cell.

33. Then a defendant officer helped plaintiff up off the ground but became angry with plaintiff when plaintiff asked for an attorney, and the defendant officer punched plaintiff 6 times in the face and the other defendant officers joined him.

34. Plaintiff was handcuffed during the entire assault, battery, and use of excessive force against him.

35. Plaintiff was transported to Brookdale Hospital via ambulance to receive treatment for the injuries caused by the defendants' use of force against him.

36. The TASER barbs were removed from his skin using an anesthetic.

37. Plaintiff was diagnosed with acute head trauma, neck tenderness, and chest tenderness from being subjected to the excessive use of force by the officers described in the preceding paragraphs, including but not limited to being kicked and punched repeatedly in the head.

38. Plaintiff had CT Scans taken of his head and cervical spine at the hospital and he was instructed to return to the hospital for additional testing and treatment when he was released from custody.

39. Plaintiff was transported back to the 73rd precinct after he received medical treatment at the hospital.

40. Defendants unlawfully fingerprinted and photographed plaintiff at the 73rd precinct.

41. Thereafter, plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued until plaintiff was arraigned in Kings County Criminal Court on August 28, 2021 at approximately 10 am and charged with crimes he did not commit and that the officers lacked probable cause to accuse him of committing, including but not limited to Resisting Arrest, Obstructing Governmental Administration, Dazzling Headlights, and Reckless Driving.

42. The defendants provided the Kings County DA's Office with false, misleading and incomplete evidence regarding their purported basis for arresting plaintiff, charging him with crimes and subjecting him to the use of excessive force.

43. The defendant officers' false, misleading and incomplete allegations against plaintiff that were communicated to the DA's Office formed the basis for the criminal prosecution initiated against plaintiff, without probable cause.

44. Plaintiff was released from custody on his own recognizance at arraignment.

45. Plaintiff returned to Brookdale Hospital after he was released from custody to receive further testing and treatment for the injuries caused by the defendants when they subjected him to the use of excessive force.

46. Plaintiff was required to appear in criminal court on two more occasions before all charges were dismissed and sealed in their entirety on December 7, 2021, after the Court granted plaintiff's motion to dismiss the charges.

47. The criminal prosecution terminated in plaintiff's favor.

48. Those officers that did not physically touch or interact with plaintiff but observed their fellow officers violating plaintiff's rights and failed to prevent and/or stop their fellow officers from violating plaintiff's rights are liable to plaintiff for their failure to intervene.

49. The City was aware prior to the aforesaid incident that the officers who violated plaintiff's rights were insufficiently trained and incompetent concerning police tactics and procedures. Nevertheless, the city declined to take remedial action.

50. Plaintiff was maliciously prosecuted, without probable cause, based upon the false and misleading allegations made by the defendant officers.

51. Plaintiff was released from custody on his own recognizance at arraignment.

52. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the officers possess objective facts to establish probable cause to believe he committed a crime.

53. Defendants fabricated the allegations made against plaintiff that were sworn to under the penalty of perjury in the criminal court complaint.

54. Defendants' unlawful and unconstitutional conduct caused plaintiff to endure being arrested and prosecuted for crimes he did not commit.

55. Moreover, plaintiff suffered extreme emotional distress from having to address the false charges brought against him in the criminal prosecution.

56. The defendant officers' false, misleading, and incomplete allegations against plaintiff formed the basis for a criminal prosecution being initiated against him, without probable cause.

57. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

58. There have been hundreds of lawsuits and Notices of Claims filed with the City of New York, and complaints filed with the Civilian Complaint Review Board by members of the public alleging that NYPD police officers continue to engage in said unconstitutional and unlawful behavior, but the NYPD has not taken reasonable steps to ensure that its officers follow the NYPD's current written policies and training regarding these issues and has not retrained or disciplined its officers for continuing to behave in an unlawful and unconstitutional manner toward members of the public under these circumstances, even when the officers admit to engaging in unconstitutional behavior like the officers did in the underlying incident involving plaintiff in this case.

59. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently pervasively continue to unlawfully and unconstitutionally stop, question, frisk, search and falsely arrest members of the public without probable cause.

60. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful stop, question, frisk, search, false arrest, false imprisonment, denial of due process and malicious prosecution because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stop, question, frisk, search and falsely arrest members of the public without probable cause.

61. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior for decades and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

62. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

63. The unlawful stop, question, frisk, search, false arrest and false imprisonment, malicious prosecution, excessive force, and denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

64. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, falsely arrested, falsely imprisoned, and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

66. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

68. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question and Frisk

71. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

72. The illegal approach, pursuit, stop, question, and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

73. The conduct of defendants in stopping, questioning, frisking, and searching, plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

74. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Searches

77. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing at the precinct, employed by defendants herein, terminated plaintiff's freedom of movement through means intentionally applied.

79. Defendants lacked probable cause to search plaintiff.

80. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

82. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

83. Plaintiff repeats and realleges paragraphs 1 through 82 as if fully set forth herein.

84. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

85. Defendants commenced and continued criminal proceedings against plaintiff.

86. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

87. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

88. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights Denial of Due Process/ Right to a Fair Trial

90. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 89 with the same force and effect as if fully set forth herein.

91. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

92. Defendants filled out false and misleading police reports and a criminal court complaint and forwarded them to the Kings County Criminal Court.

93. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

94. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION**Violation of Plaintiff's Fourth and Fourteenth Amendment****Rights: Excessive Force**

96. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. The use of excessive force by defendants against plaintiff described herein was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

98. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION**Failure to Intervene**

99. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 98 with the same force and effect as if more fully set forth at length herein.

100. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

101. Defendants failed to intervene to prevent the unlawful conduct described herein.

102. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

NINTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

104. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 103 with the same force and effect as if more fully set forth at length herein.

105. Plaintiff was unlawfully searched, interrogated, frisked, falsely arrested plaintiff, maliciously prosecuted, and denied the right to due process, without an objective factual legal basis to seize, arrest and prosecute plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

106. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

107. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

108. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

109. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

110. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

111. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

112. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

113. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

114. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

115. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

116. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff JAQUAN KEITH demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recovers the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 27, 2024

By: David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
August 27, 2024

David Hazan

DAVID M. HAZAN